sources of cash, because if they do not pay up, they can be made to become ‘terrorists’ again. Here is the time- honoured police and gangster tradition of the ‘hafta’ and ‘vasuli’ ratcheted up through the brute force of a military occupation. This in fact is one of the sad truths of the Indian State’s presence in Kashmir, and for the sake of the triumph of this truth, Mohammad Afzal Guru is sentenced to die.

I can only hope that A.P.J. Abdul Kalam looks carefully at the motto inscribed on his website, his stationery, his cutlery and his towels before he goes to sleep each night in the next few days as he weighs the decision about whether to assent to the clemency petition filed by Afzal’s family: Satyameva Jayate.

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[*]Subsequently, on 11 November, Barkha Dutt wrote another column in the *Hindustan Times* titled ‘Warning, Handle With Care’, where she does a volte face, arguing for sparing Afzal’s life (so as to ensure Kashmir does not go up in flames—a variant of the position that Ghulam Nabi Azad allowed to be ascribed to him). She does this while simultaneously criticizing a host of other arguments that have been made in favour of a commutation of the death sentence on the grounds that they amount to an assertion of Afzal’s innocence. No substantive critiques of the death sentence on Afzal, mine included, have ever tried to comment on Afzal’s purported innocence or guilt. All that some of us have been trying to say is that Afzal’s statements indicate that he was acting under compulsion and that they point to the possibility of a wider nexus, one that includes elements of the state apparatus, in the entire 13 December episode. Our demand is that this needs further investigation before any decision can be made. First, it would be a gross miscarriage of justice were we to condemn a man to death by holding him responsible for the things he may have been forced to do, especially while those who compelled him to do what he did remain untouched because of the positions they hold or held. Secondly, a thorough investigation of the matter in its entirety, which is necessary before we can apportion responsibility, culpability or blame with any justice and precision, requires Afzal to live, and to testify. Barkha Dutt is unwilling now to let Afzal hang, on strictly ‘pragmatic’ grounds. However, she has not recanted her principled support for the death penalty as an instrument of justice, nor does she bring up the matter of the implications of Afzal’s statement. She merely parrots the charge that Afzal is a terrorist and that ‘he needs to be punished, and punished hard’. In doing so, Barkha